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Subject: [External] Public comment on Request for Information on the Development of an Artificial Intelligence (AI) Action Plan
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The best way to promote innovation in AI is to establish criteria that define appropriate use and use public policy to promote that. To the extent that AI training needs access to large quantities of data, the appropriate approach would be to set up a compulsory licensing scheme. This would serve the Constitutional purpose of promoting science and the useful arts by ensuring that AI companies have an easy way to acquire data free of risk from intellectual property lawsuits and that the owners of the intellectual property that AI companies want to use get compensated for the use of their property. We do this with music all the time. ASCAP, BMI, etc. have an effective model that we should use.

Relying on "fair use" is a false promise. No other country in the world has fair use provisions that are as broad as ours. If the United States is going to compete in the global AI marketplace, we need to ensure that our companies are not vulnerable to lawsuits, fines, or even outright bans where copyright laws are more restrictive of nonconsensual, uncompensated use of property.
